D’var Torah – Elul & Parshat Shoftim

Elul Connection – Ani L’dodi

We’ve just entered the month of **Elul**, a month known for preparation before Rosh Hashanah and Yom Kippur. The Sages teach that the very name *Elul* is hinted in the verse *“Ani l’dodi v’dodi li” — I am my beloved’s and my beloved is mine* (Shir HaShirim 6:3).

This reminds us that our Avodat Hashem is not only about rules or fear of judgment, but about a relationship of love. Just as in a marriage, there are times when we do something not because it makes sense to us, but because our spouse desires it — so too with Hashem. There are mitzvot we cannot fully explain (*chukim*), yet we fulfill them as an act of devotion and love.

But Elul also reminds us that love is not enough on its own. A marriage also needs structure and order. There are times when we want things to make sense, or at least to see how they may shape life meaningfully. This is exactly where **Parshat Shoftim** comes in — providing the framework for a holy society.

Shoftim – Human Justice and Structure

This week, however, Parshat **Shoftim** opens from a different perspective. The very name — *Shoftim*, Judges — already brings us into the practical, human reality of how to structure society. It’s not only about avoiding idolatry or foreign practices; it’s about building a just and holy community.

“Shoftim v’shotrim titen lecha” — “You shall appoint judges and officers in all your gates” (Devarim 16:18). It is a mitzvah to establish courts and law enforcement in Eretz Yisrael, so that society does not descend into chaos (Sanhedrin 16b, Rambam Hilchot Sanhedrin 1:1).

As someone who grew up in America, I sometimes think of the “Wild West,” where justice was inconsistent, duels took place in the street, and sheriffs often looked the other way. The Torah tells us: don’t let that happen. Even something as “basic” as setting up judges and officers is in fact a godly act.

Impartial Justice – The Judge's Responsibility

The Torah emphasizes again and again the importance of impartial justice:
"You shall not favor the poor, nor honor the great; with righteousness shall you judge your fellow" (Vayikra 19:15, cf. Devarim 1:17).

Pirkei Avot expands on this: a judge must not tilt judgment either way — not favoring the poor out of pity, and not honoring the wealthy out of respect. Justice must be blind.

The Torah goes further: *"You shall not take a bribe"* (Devarim 16:19). Rashi notes that even if the bribe would not change the outcome — even if the judge was going to rule the same way — he must remove himself from the case. Why? Because a bribe clouds perception. A judge who accepts influence, no matter how small, is no longer fit to rule. This is how Am Yisrael remains holy: not just in ritual, but in ensuring that our daily lives, our courts, and our leaders are untouched by corruption.

The King and His Torah

The next step of the things in the world which are normal, but which we need to keep in mind to do in a holy way in the parsha is the question of monarchy: "*When you come to the land the Lord, your God, is giving you, and you possess it and live therein, and you say, "I will set a king over myself, like all the nations around me,"* (Devarim 17:14). This request is not Hashem's ideal — after all, He Himself is our true King — but He permits it, with strict limits.

The king may not accumulate excessive horses, wealth, or wives (Devarim 17:16–17). Unlike the kings of the nations, who seek glory and indulgence, the Jewish king's task is service and humility. To safeguard this, the Torah commands that the king write for himself a personal Sefer Torah and read from it constantly: *"So that his heart not be lifted above his brethren"* (17:19–20).

The Rambam (Hilchot Melachim 3:1) writes that the king carries this Torah wherever he goes. His authority is never for personal power but only to guide Am Yisrael under the authority of Torah.

These are all to remind us that even a King are still supposed to be subservient to Hashem. Unlike the kings of the nations, who pursue power, honor, and desire, the Jewish king's role is to serve Hashem and guide the people.

Prophets – True and False

Earlier in the Torah, the concern was primarily with Jews falsely claiming to speak in Hashem's name. Here the scope widens: we are warned even against prophets from among the nations, or those who use sorcery and witchcraft to predict the future.

Bilam is the classic example. He truly did hear Hashem's word, but he used it for selfish and corrupt purposes (Bamidbar 22–24). For the reasons of his motive was he brought down and punished, but he never professied for the Jews, only for the nations.

The bigger danger we are being warned of here is that prophecy outside of Torah is possible. In this parsha, the Torah contrasts false prophecy and kishuf with the true guidance of nevua and ruach hakodesh given to the Nevi'im of Am Yisrael. We see that while Hashem may choose to speak with some unique people of the nations of the world, even that can be confused with actions of Tumah.

The message is clear: don't be impressed by what looks powerful, mystical, or accurate. Truthfully, we don't even need to entertain those ways because there is always a kosher way, the Torah's way. Not because the other path lacks power, but because it lacks holiness. Just as the Jews had Moshe, Yehoshua and others to lead them then in the way of Torah, we have our guides and leaders now and here as well but just need to learn how to find them.

Witnesses and Testimony

Another foundation of justice in Shoftim is testimony: *"By the testimony of two or three witnesses shall a matter be established"* (Devarim 19:15).

This principle ensures that justice is rooted in truth. False witnesses (*eidim zomemim*) are punished with the very sentence they hoped to impose on another (19:16–19). This safeguard keeps society from crumbling under lies and manipulation. Again, this is something other nations also recognize, but for us, it is not merely civic law — it is kedushah.

War and Bal Tashchit

Shoftim also addresses the laws of warfare. Even in battle, boundaries remain: we may not destroy fruit-bearing trees when laying siege: *"For man is like the tree of the field"*

(20:19). From here we learn a perspective on the mitzvah of *bal tashchit* — the prohibition against needless destruction.

Sadly, in recent times we saw the opposite in Gush Katif, when flourishing orchards and greenhouses were destroyed rather than cherished. The Torah tells us: value Hashem's gifts. Even in the chaos of war, we are commanded to build, not destroy.

Further than this, we see another warning in action as well, if we act like those around us, the ones who should not be emulated we may come to emulate the actions they do, even if they do not make sense in a bad way. We may act out of spite or anger and destroy without purpose, the ultimate descent to animalistic behaviors.

Stepping Out of the Midbar

All of these laws remind us of the transition taking place. Am Yisrael is leaving the midbar, where life was constant miracles — the manna, the clouds of glory, the Mishkan — and entering the land, where they will farm, fight wars, build courts, and appoint leaders.

And the Torah's message is this: holiness is not only in the Beit Midrash or the Mishkan. It must extend to the courtroom, the battlefield, the palace, and the orchard.

Conclusion – Finding Kedushah in the Mundane

This is the thread uniting both **Elul** and **Shoftim**. In Elul, we prepare ourselves to renew a relationship of love with Hashem: *Ani l'dodi v'dodi li*. Sometimes that love moves us to act beyond reason, and sometimes we see the sense and wisdom of Hashem's mitzvot. In Shoftim, we are reminded that even the rational, civic institutions of society — justice, kingship, courts, testimony, and even military conduct — are not just "practical." They are infused with kedushah when done in service of Hashem.

The nations of the world may also have courts, prophets, kings, and armies. But for us, every one of these is elevated — structured not by human whim, but by the Torah.

May we take this into Elul: to find kedushah in the ordinary, to align both our acts of love and our acts of order with the ratzon Hashem, and to enter the Yamim Nora'im ready to live as a truly holy people.